

ROMANIA - TECHNICAL INQUIRY

Air-quality data used to support consequential action

ROMANIA REQUESTED Written technical questions	TA14 STATUS Inquiry open
ROMANIAN RESPONSE Pending	TA14 FINDING None

To: Bogdan GIRD, Head of Air Quality and Health Impact Service
National Agency for Environment and Protected Areas, Romania

Purpose. In response to Mr. Gird's request, TA14 is providing a bounded written inquiry concerning how Romanian air-quality observations and records may support consequential institutional action. The questions are designed so the Agency may answer with existing regulations, procedures, public URLs, responsible institutions, datasets, or short explanatory notes. No special TA14 terminology is required.

Primary-source rule. Romania's own laws, regulations, procedures, records, explanations, and official links remain the controlling source. Any later TA14 mapping is secondary and will be clearly identified as independent analysis.

THE EXAMINATION PATH

1 REALITY	2 RECORD	3 VALIDATION	4 ADMISSIBILITY
5 AUTHORITY & STANDING	6 CONSEQUENCE	7 REVALIDATION	8 OUTCOME / NEW REALITY

The inquiry does not assume that technically valid data automatically creates authority to act. It asks Romania to describe, in Romania's own terms, the path from observed atmospheric condition to any real-world institutional consequence.

1. REALITY - What was actually observed?

How does Romania establish the atmospheric condition that is being treated as the factual starting point for a decision or action?

- Which monitoring systems, measurement methods, or observation classes may supply that factual basis?
- How are time, location, pollutant, instrument/station identity, and relevant contextual conditions associated with an observation?
- What distinguishes a measured observation from an estimate, model output, interpretation, or other derived information?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

2. RECORD - What preserves the observation as evidence?

What record is preserved so that an air-quality observation can later be traced, reviewed, or relied upon?

- What provenance, metadata, calibration, continuity, custody, or version information is retained?
- How are corrections, adjustments, substitutions, missing data, or later revisions preserved without obscuring the original record?
- If raw and adjusted values both exist, how are they distinguished and made reviewable?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

3. VALIDATION - What establishes technical reliability?

What processes determine whether air-quality information is technically reliable enough for its intended use?

- Which quality-assurance, quality-control, validation, calibration, or review procedures apply?
- Who performs or approves those procedures, and under what technical rules or standards?
- How are uncertainty, data-quality limitations, invalid measurements, or conflicting observations represented?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

4. ADMISSIBILITY - Is the evidence sufficient for this purpose?

After technical validation, what determines whether particular air-quality information is sufficient for a specific institutional purpose?

- Does sufficiency depend on the contemplated decision or action, rather than on data quality alone?
- Are thresholds, averaging periods, exceedance rules, corroboration requirements, or other conditions used?
- What happens when the available information is valid but insufficient for the proposed institutional consequence?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

5. AUTHORITY & STANDING - Who may decide?

When air-quality evidence may support a consequential decision, how is the competent decision-maker and that decision-maker's authority established?

- Which national, regional, local, or other public bodies may have relevant competence?
- Can authority be delegated or shared, and if so, how is the applicable authority established for the particular decision?
- Who has standing to initiate, review, challenge, approve, or require reconsideration of the decision?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

6. CONSEQUENCE - What action is actually permitted?

What connects sufficient evidence and applicable authority to the specific real-world action that may lawfully or administratively occur?

- What kinds of consequential actions may follow from air-quality information, and what additional conditions must be satisfied?
- How is the permitted scope of action distinguished from a technical recommendation or operational capability?
- What conditions require a proposed action to be held, denied, paused, escalated, or reconsidered rather than executed?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

7. REVALIDATION - Is it still sufficient NOW?

If time, conditions, evidence, responsible entities, or legal context change after a decision is formed but before action occurs, what requires re-evaluation?

- Are there expiry periods, changed-condition checks, updated measurements, renewed approvals, or other revalidation mechanisms?
- Can previously sufficient evidence or authority become insufficient before execution?
- What mechanism prevents an earlier justification from being treated as authorization indefinitely?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

8. OUTCOME / NEW REALITY - What proves what happened?

After consequential action occurs, what record establishes the action taken, its authority, and the resulting atmospheric or institutional outcome?

- How is execution documented and linked back to the evidence and decision that supported it?
- Is post-action monitoring or verification required, and how are unintended or insufficient outcomes handled?
- How does the resulting condition become the next factual record for subsequent decisions?

Response may consist of: regulation / procedure / official URL / responsible institution / dataset description / brief explanatory note.

WHY THESE QUESTIONS ARE BOUNDED

The inquiry is not an assessment of whether Romania has adopted TA14, nor a request for endorsement. It is intended to let Romanian authorities describe their own evidence, authority, and action framework accurately before any independent technical mapping is attempted.

A technically valid observation and an authorized consequence are different propositions. The questions therefore preserve the distinction between **what is known**, **what is sufficient for a particular purpose**, **who has authority and standing**, and **what action is actually permitted now**.

The same distinction applies in the opposite direction: the absence of authority or sufficient evidence may itself require a proposed consequence to be held, denied, escalated, or reconsidered.

TA14 GOVERNING QUESTION

Does this proposed consequence have sufficient Admissible Evidence, Applicable Authority, and Established Standing to become reality NOW?

RESPONSE FORMAT

The Agency is welcome to respond incrementally and by reference. Existing public materials are preferred where they already answer a question. TA14 does not require a narrative response to every prompt. Where another Romanian institution is the authoritative source for a particular boundary, identifying that institution is itself useful.

Following review of Romania's written response, TA14 may prepare an independent technical mapping and, if useful, request a technical discussion to clarify only the remaining issues. The original Romanian response will remain preserved as the primary source and will not be rewritten to fit TA14 terminology.

INSTITUTIONAL STATUS

Independent technical inquiry. No endorsement, adoption, partnership, certification, or approval by the Government of Romania, the National Agency for Environment and Protected Areas, or any Romanian institution is claimed or implied.

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